Case No. 23-1761

Case No. 23-1761

UNITED STATES COURT OF APPEALS
FOR THE SIXTH CIRCUIT

JOE BRUNEAU; DAVID PHILLIPS; DANA RALKO; PATRICIA RALKO; MARY RANDALL; OSRO RANDALL; JAMES MRDUTT; ALICIA MRDUTT, individually and on behalf of all those similarly situated,

Plaintiffs-Appellants,

v.

MICHIGAN DEPARTMENT OF ENVIRONMENT, GREAT LAKES AND ENERGY; MICHIGAN DEPARTMENT OF NATURAL RESOURCES; FOUR LAKES TASK FORCE,

Defendants,

MIDLAND COUNTY, MI; GLADWIN COUNTY, MI; JOHN DOES 1-100,

Defendants-Appellees.

On Appeal from the United States District Court for the Eastern District of Michigan

ON APPEAL FROM THE U.S. DISTRICT COURT
EASTERN DISTRICT OF MICHIGAN

ORAL ARGUMENT REQUESTED

BRIEF OF DEFENDANTS-APPELLEES MIDLAND COUNTY, MI AND GLADWIN COUNTY, MI ON APPEAL

ORAL ARGUMENT REQUESTED

Douglas J. Curlew (P39275)
Kevin J. Campbell (P66367)
Cummings, McClorey, Davis & Acho, P.L.C.
17436 College Parkway
Livonia, MI 48152
Attorneys for Defendants-Appellees

Douglas J. Curlew (P39275)
Kevin J. Campbell (P66367)
Cummings, McClorey, Davis & Acho, P.L.C.
17436 College Parkway
Livonia, MI 48152
Attorneys for Defendants-Appellees
(734) 261-2400

DISCLOSURE OF CORPORATE AFFILIATIONS AND FINANCIAL INTEREST

UNITED STATES COURT OF APPEALS
FOR THE SIXTH CIRCUIT

Disclosure of Corporate Affiliations and Financial Interest

Pursuant to 6th Cir. R. 26.1, Gladwin County, MI makes the following disclosure:

1. Is said party a subsidiary or affiliate of a publicly owned corporation? If yes, list below the identity of the parent corporation or affiliate and the relationship between it and the named party:

Sixth Circuit
Case Number: 23-1761 Case Name: Bruneau et al v. MI Dept of Envt et al.

Name of counsel: Kevin J. Campbell

Pursuant to 6th Cir. R. 26.1, Gladwin County
Name of Party

makes the following disclosure:

1. Is said party a subsidiary or affiliate of a publicly owned corporation? If Yes, list below the identity of the parent corporation or affiliate and the relationship between it and the named party:

No

2. Is there a publicly owned corporation, not a party to the appeal, that has a financial interest in the outcome? If yes, list the identity of such corporation and the nature of the financial interest:

No

2. Is there a publicly owned corporation, not a party to the appeal, that has a financial interest in the outcome? If yes, list the identity of such corporation and the nature of the financial interest:

No

CERTIFICATE OF SERVICE

I certify that on 8/28/23 the foregoing document was served on all parties or their counsel of record through the CM/ECF system if they are registered users or, if they are not, by placing a true and correct copy in the United States mail, postage prepaid, to their address of record.

s/Kevin J. Campbell
17436 College Parkway
Livonia, MI 48152

This statement is filed twice: when the appeal is initially opened and later, in the principal briefs, immediately preceding the table of contents. See 6th Cir. R. 26.1 on page 2 of this form.

TABLE OF CONTENTS

TABLE OF CONTENTS

Page

Table of Authorities ii

Statement in Support of Oral Argument v

Statement Regarding Jurisdiction vi

Counter-Statement of Issues Presented for Review vii

Counter-Statement of the Case 1

Summary of Argument 21

Argument 24

I. THE STANDARD OF APPELLATE REVIEW OF *DE NOVO* 24

II. THE EVIDENTIARY RECORD CANNOT SUSTAIN A MICHIGAN "INVERSE CONDEMNATION" C LAIM AGAINST EITHER MIDLAND OR GLADWIN COUNTY 25

A. The Plaintiffs-Appellants wrongly interpret *Krieger* as satisfying their burden of proof 26

B. The Plaintiffs-Appellants have failed to produce evidence to support their Michigan inverse condemnation claim 29

III. THE PLAINTIFFS-APPELLANTS CANNOT MAINTAIN A FIFTH AMENDMENT "TAKING" CLAIM AGAINST EITHER MIDLAND OR GLADWIN COUNTY 34

Conclusion and Relief Requested 43

Certificate of Compliance 44

Certificate of Service 44

Record Appendix Making Designation of Documents 45

TABLE OF AUTHORITIES

Cases: **Page(s)**

Anderson v. Liberty Lobby, Inc., 477 U.S. 242 (1986) 3

Arkansas Game and Fish Commission v. United States, 568 U.S. 23 (2012) 5

Bright v. United States, 5 Ct. Cl. 324 (1984) 5

Blue Harvest, Inc. v. Department of Transportation, 288 Mich. App. 267, 792 N.W.2d 798 (2010) 2, 3, 4

Cox v. Kentucky Department of Transportation, 53 F.3d 146 (6th Cir. 1995) 3

Hartwig v. United States, 485 F.2d 1204 (1973) 5

Krieger v. Department of Environment, Great Lakes, and Energy, No. 359859, 2023 WL 5808605 (Mich. Ct. App. Sept. 7, 2023) 1

McCarthy v. City of Cleveland, 626 F.3d 280 (6th Cir. 2010) 4

Pumpelly v. Green Bay Co., 80 U.S. 166 (1871) 5

Puskas v. Delaware County, Ohio, 56 F.4th 1088 (6th Cir. 2023) 2

Ridgeline, Inc. v. United States, 346 F.3d 1346 (Fed. Cir. 2003) 5

Tahoe-Sierra Preservation Council, Inc. v. Tahoe Regional Planning Agency, 535 U.S. 302 (2002) 4

United States v. Cress, 243 U.S. 316 (1917) 5

Lenoir v. Porters Creek Watershed District, 586 F.2d 1081 (6th Cir. 1978) 34

Marilyn Froling Revocable Living Trust v. Bloomfield Hills Country Club, 283 Mich. App. 264, 769 N.W.2d 234 (2009) 27

McCarthy v. City of Cleveland, 626 F.3d 280 (6th Cir. 2010) 21-22, 34

Michigan Department of Environment v. Mueller, No. 1:20-cv-528, 2023 WL 7162918 (W.D. Mich. Oct. 6, 2023) 7, 28

Miller v. United States, 583 F.2d 857 (6th Cir. 1978) 40

Moldowan v. City of Warren, 578 F.3d 351 (2009) 24

Phillips v. UAW International, 854 F.3d 323 (6th Cir. 2017) 25

Pumpelly v. Green Bay Co., 80 U.S. 166 (1871) 35

Puskas v. Delaware County, Ohio, 56 F.4th 1088 (6th Cir. 2023) 24

Ridgeline, Inc. v. United States, 346 F.3d 1346 (Fed. Cir. 2003) 22, 36, 37, 39

Sanguinetti v. United States, 264 U.S. 146 (1924) 41

Shreve v. Franklin County, Ohio, 743 F.3d 126 (6th Cir. 2014) 29

St. Bernard Parish Government v. United States, 887 F.3d 1354, 1360 (Fed. Cir. 2018) 22, 39, 41

Tahoe-Sierra Preservation Council, Inc. v. Tahoe Regional Planning Agency, 535 U.S. 302 (2002) 34

Thune v. United States, 41 Fed. Cl. 49 (1998) 22, 40, 41

United States v. Cress, 243 U.S. 316 (1917) 35

Upton v. City of Royal Oak, 492 Fed. Appx. 492 (6th Cir. 2012) 28

Statutes:

Wiggins v. City of Burton, 291 Mich. App. 532, 805 N.W.2d 517 (2011)..... 25
Mich. Comp. Laws §§ 324.31506 et seq. 2

Rules:

Statutes

Fed. R. Civ. P. 56 2
Mich. Comp. Laws §324.30701 4

Mich. Comp. Laws §324.30707(4) 8

Mich. Comp. Laws §324.31506 ..... 3, 7

Mich. Comp. Laws §324.31507 17

Mich. Comp. Laws §324.31508(1) 17

Mich. Comp. Laws §324.31509 17

Mich. Comp. Laws §324.31515(1) 17

Rules

Fed. R. Civ. P. 12(b)(6) 28

Fed. R. Civ. P. 56 ..... 20, 24

Fed. R. Civ. P. 56(a) 24

Fed. R. Civ. P. 56(c) 24

MCR 2.116(C)(8) 28

STATEMENT IN SUPPORT OF ORAL ARGUMENT

Defendants-Appellees Midland County and Gladwin County request oral argument. The Plaintiffs-Appellants mischaracterize both the facts and the law. It is anticipated that such mischaracterizations will arise again in the Plaintiffs-Appellants' reply brief. Oral argument will be the only opportunity for the Defendants-Appellees' counsel to rebut such statements.

STATEMENT REGARDING JURISDICTION

Defendants-Appellees Midland County and Gladwin County accept the Plaintiffs-Appellants' jurisdictional statement as substantively correct.

COUNTER-STATEMENT OF ISSUES PRESENTED FOR REVIEW

1. Does the evidentiary record support the requisite elements of the Plaintiffs-Appellants' inverse condemnation "taking" claim under Michigan law? The Plaintiffs-Appellants answer: "Yes." The Defendants-Appellees answer: "No."
2. Does the evidentiary record support the requisite elements of the Plaintiffs-Appellants' Fifth Amendment "taking" claim under federal law? The Plaintiffs-Appellants answer: "Yes." The Defendants-Appellees answer: "No."

COUNTER-STATEMENT OF THE CASE

COUNTER-STATEMENT OF THE CASE

Introduction. The Plaintiffs-Appellants summarize their argument by stating that "Appellees set into motion the destructive forces that caused the [Edenville] Dam collapse by establishing dangerously high lake levels despite knowing that the Dam lacked adequate spillway capacity and was in need of significant repair" (Plaintiffs-Appellants' Brief, p. 8). They rely heavily on the recent Michigan Court of Appeals decision in *Krieger v. Department of Environment, Great Lakes, and Energy*, No. 359859, 2023 WL 5808605 (Mich. Ct. App. Sept. 7, 2023) (Plaintiffs-Appellants' Brief, pp. 8, 11-15, 17-18).

Introduction.

The Plaintiffs-Appellants summarize their argument by stating that "*Appellees set into motion the destructive forces that caused the [Edenville] Dam collapse by establishing dangerously high lake levels despite knowing that the Dam lacked adequate spillway capacity and was in need of significant repair*" **(Plaintiffs-Appellants' Brief, p. 8)**. They rely heavily on the recent Michigan Court of Appeals decision in ***Krieger v. Department of Environment, Great Lakes, and Energy***, No. 359859, 2023 WL 5808605 (Mich. Ct. App. Sept. 7, 2023) **(Plaintiffs-Appellants' Brief, pp. 8, 11-15, 17-18)**.

But *Krieger* addressed claims against the state agencies that actually exercised regulatory authority over the dam. It offered only a pre-discovery analysis by reference to the pleadings alone, with the bare allegations of the plaintiffs accepted as "true." *Krieger*, at *2, 13. The analysis is not dispositive against Midland and Gladwin Counties. This case must be decided on the actual evidentiary record as it relates to the Counties.

But ***Krieger*** addressed claims against the *state* agencies that actually exercised regulatory authority over the dam. Moreover, ***Krieger*** offered only a pre-discovery analysis by reference to the pleadings alone - - with the bare *allegations* of the plaintiffs regarding the defendants' conduct being accepted as "true," ***Krieger***, at *2, 13. The court recognized that the allegations about the defendants' supposed "operational control of the dam" might be shown by discovery to be false. ***Id.*** at *13.

Substantive Facts. When Boyce failed to satisfy repeated demands by the Federal Energy Regulatory Commission (FERC) for the spillway capacity to be upgraded, the FERC revoked the Edenville Dam's power generation license effective September 10, 2018. (R. 39-7, Pg ID 3654-3663, FERC Order Revoking Boyce Hydro License, R. 39-8, Pg ID 3774-3777; FERC Final Report, pp. 36-37). Regulatory authority over the dam then fell to the Michigan Department of

The *Krieger* analysis is not declarative or dispositive against the Defendants-Appellee Counties in the present case. Analysis of the bare allegations of the plaintiffs in *Krieger* against the state agencies are meaningless. This present case

Environment, Great Lakes and Energy (EGLE), Mich. Comp. Laws §§ 324.31506 et seq. (R. 59-8, Pg ID 3695, IFT Final Report, p. 7).

ARGUMENT

I. THE STANDARD OF APPELLATE REVIEW IS *DE NOVO*

SUMMARY OF ARGUMENT

Defendants-Appellees County of Midland and County of Gladwin sought summary in the district court under Fed. R. Civ. P. 56. **(R. 56, Pg ID 2377, 2396, Defendants' Motion for Summary Judgment, pp. 1, 12).** The district court granted summary judgment to the counties under the Rule 56 standard. **(R. 81, Pg ID 7020, 7021, Magistrate's Report and Recommendation, pp. 6-7; R. 83, Pg ID 7044-7046, Opinion and Order Granting Summary Judgment; R. 84, Pg ID 7047, Judgment).**

A district court's grant of summary judgment is reviewed *de novo* on appeal. ***Puskas v. Delaware County, Ohio***, 56 F.4th 1088, 1093 (6th Cir. 2023). In doing so, this Court uses "the same Rule 56(c) standard as the district court. ***Moldowan v. City of Warren***, 578 F.3d 351, 373 (2009).

Summary judgment is properly granted where "there is no genuine issue as to any material fact and the movant is entitled to judgment as a matter of law." Fed. R. Civ. P. 56(a), ***Puskas***, 56 F.4th at 1093. "[T]he mere existence of *some* alleged factual dispute between the parties will not defeat an otherwise properly supported motion for summary judgment; the requirement is that there be no *genuine* issue of *material* fact." ***Anderson v. Liberty Lobby, Inc.***, 477 U.S. 242, 247-8 (1986), *emphasis in original*.

material fact." *Anderson v. Liberty Lobby, Inc.*, 477 U.S. 242, 247-48 (1986)
App. at 572-3, 805 N.W.2d at 541-2, *emphasis added*.

(emphasis in original).

As described above, neither Midland County nor Gladwin County (nor the

II. The evidentiary record cannot sustain a Michigan "inverse condemnation"
FLTF as their "delegated authority") ever had "ownership" of the Edenville Dam

claim against either Midland or Gladwin County.

until after the dam failure and flooding of which the Plaintiffs-Appellants' complain.

A. The Plaintiffs-Appellants wrongly interpret *Krieger* as satisfying their burden of proof.

It was the Boyce entities alone that had ownership - - up to and including the date of

The Plaintiffs acknowledge that "a plaintiff alleging a de facto taking or

the May 19, 2020 dam failure and flood - - as demonstrated by both the record in the
inverse condemnation 'must establish (1) that the government's actions were a

present case and the liability judgment in ***Michigan Department of Environment v.***
substantial cause of the decline of the property's values and (2) that the

Mueller, No. 1:20-cv-528, 2023 WL 7162918, at *1, 4 (W.D. Mich. Oct. 6, 2023).
government abused its powers in affirmative actions directly aimed at the

property.'" *Blue Harvest*, 288 Mich. App. at 277 (Plaintiffs-Appellants' Brief, p.

11).

The Plaintiffs acknowledge that "a plaintiff alleging a de facto taking or

The *Krieger* case made no such determinations, even as to the "state

inverse condemnation "must establish (1) that the government's actions were a

agencies" before it, and certainly not toward Midland and Gladwin Counties. It

substantial cause of the decline of the property's values and (2) that the government

addressed the pleadings under Michigan Court Rule 2.116(C)(8), and it did not

abused its powers in affirmative actions directly aimed at the property." ***Blue***

make factual findings. In the present case, discovery has been completed. The

Harvest, Inc. v. Department of Transportation, 288 Mich. App. 267, 277, 792

Plaintiffs-Appellants cannot rely upon their allegations but, rather, must produce

N.W.2d 798, 805 (2010). **(Plaintiffs-Appellants' Brief, p. 11).** The ***Blue Harvest***

evidence from which a jury could find in their favor on the legal elements of their

case further declares that "a plaintiff alleging inverse condemnation must prove a

claim. *Cox v. Kentucky Department of Transportation*, 53 F.3d 146, 149 (6th Cir.

causal connection between the government's action and the alleged damages." ***Id.***,

1995).

288 Mich. App. at 277, 792 N.W.2d at 805.

The Plaintiffs-Appellants also quote ***Charles Murphy, M.D., P.C. v. Detroit***,

B. The Plaintiffs-Appellants have failed to produce evidence to support their Michigan inverse condemnation claim.

III. THE PLAINTIFFS-APPELLANTS CANNOT MAINTAIN A FIFTH AMENDMENT "TAKING" CLAIM AGAINST EITHER MIDLAND OR GLADWIN COUNTY.

Although the counties' petition to set a lake level was an affirmative action, it was neither an "abuse" of governmental power, nor "directly aimed" at the Plaintiffs-Appellants' properties. This action was "aimed" only at Wixom Lake and the property of the Boyce entities, as the mechanism governing greater or lesser outflow from the lake.

As acknowledged by the Plaintiffs-Appellants, a Fifth Amendment "taking" claim may assume "one of two forms." ***McCarthy v. City of Cleveland***, 626 F.3d 280, 284 (6th Cir. 2010). There may be either a "physical taking" whereby the government "physically intrudes upon a plaintiff's property" or a "regulatory taking" whereby the government encroaches upon use of property. ***Id.***

Moreover, the Plaintiffs-Appellants complain that the counties failed to undertake the spillway upgrades that the Plaintiffs-Appellants insist were needed, i.e., inaction. Under Michigan law, an inverse condemnation claim must be based on "action" by the defendant, not inaction. *Blue Harvest, Inc.*, 288 Mich. App. at 277.

The Plaintiffs-Appellants' Fifth Amendment claim is predicated upon a physical intrusion, i.e., flooding of their properties as a consequence of the failure of the Edenville Dam. Because this falls in the category of a physical taking, it must be analyzed in light of precedential cases that likewise involve physical takings. It is "inappropriate to treat cases involving physical takings as controlling precedents for the evaluations of a claim that there has been a regulatory taking, and vice versa." *Tahoe-Sierra Preservation Council, Inc. v. Tahoe Regional Planning Agency*, 535 U.S. 302, 323 (2002).

III. The Plaintiffs-Appellants cannot maintain a Fifth Amendment "taking" claim against either Midland or Gladwin County.

As acknowledged by the Plaintiffs-Appellants, a Fifth Amendment "taking" claim may assume "one of two forms." *McCarthy v. City of Cleveland*, 626 F.3d 280, 284 (6th Cir. 2010). The Plaintiffs-Appellants' claim is predicated upon a physical intrusion, i.e., flooding of their properties. It is "inappropriate to treat cases involving physical takings as controlling precedents for the evaluations of a claim that there has been a regulatory taking, and vice versa." *Tahoe-Sierra Preservation Council, Inc. v. Tahoe Regional Planning Agency*, 535 U.S. 302, 323 (2002).

In fact, Fifth Amendment taking claims arising from instances of alleged governmentally caused flooding are numerous. And, as recognized by this Court, much of the instructive case law has been developed in the United States Court of Claims (now the Court of Federal Claims). ***Lenoir v. Porters Creek Watershed District***, 586 F.2d 1081, 1094 (6th Cir. 1978).

The Plaintiffs-Appellants cite *Pumpelly v. Green Bay Co.*, 80 U.S. 166, 181 (1871), for the proposition that "where real estate is actually invaded by superinduced additions of water, earth, sand, or other material, or by having any artificial structure placed on it, so as to effectually destroy or impair its usefulness, it is a taking, within the meaning of the Constitution." *Id.*, at 181. **(Plaintiffs-Appellants' Brief, p. 22)**. But the case law that has developed during the 150 years following the *Pumpelly* decision is not so absolute as this statement from *Pumpelly* would suggest. The Plaintiffs-Appellants must prove more than the mere happening of a flood upon their properties.

This Court should not be misled by Plaintiffs-Appellants' citation to *Arkansas Game and Fish Commission v. United States*, 568 U.S. 23 (2012) for the proposition that "[a] taking can occur when a person's property is damaged by a temporary flooding." **(Plaintiffs-Appellants' Brief, p. 22)**. Although the Supreme Court has rejected the "a categorical bar to temporary-flooding takings claims," *Arkansas Game and Fish Commission*, 568 U.S. at 36, both the duration and frequency of flooding remain critical factors to consider.

As long-established by the Supreme Court, "it is the *character* of the invasion, not the amount of damage resulting from it . . . that determines the question whether it is a taking." *United States v. Cress*, 243 U.S. 316, 328 (1917), *emphasis added*. The *Arkansas Game and Fish Commission* decision rejected "*only*" categorical

CONCLUSION AND RELIEF REQUESTED

CONCLUSION AND RELIEF REQUESTED

For the reasons described above, the record will not sustain the Plaintiffs-Appellants' Michigan "inverse condemnation" claim or Fifth Amendment "taking" claim against either Midland County or Gladwin County. Summary judgment in favor of the counties should be affirmed.

For the reasons described above, the record will not sustain the Plaintiffs-Appellants' Michigan "inverse condemnation" claim or Fifth Amendment "taking" claim against either Midland County or Gladwin County. Summary judgment in favor of the counties should be affirmed.

Respectfully submitted,

s/Douglas J. Curlew
Cummings, McClorey, Davis & Acho, P.L.C.
17436 College Parkway
Livonia, MI 48152
Ph: (734) 261-2400
Email: dcurlew@cmda-law.com
Attorneys for Defendants-Appellees Midland County, MI and Gladwin County, MI

s/Douglas J. Curlew
DOUGLAS J. CURLEW
Cummings, McClorey, Davis & Acho, P.L.C.
17436 College Parkway
Livonia, MI 48152
(734) 261-2400
dcurlew@cmda-law.com
Attorneys for Defendants-Appellees Midland County, MI and Gladwin County, MI

Dated: January 31, 2023

January 31, 2024

CERTIFICATE OF COMPLIANCE

CERTIFICATE OF COMPLIANCE

I certify that this brief complies with the type-volume limitation of Fed. R. App. P. 32(a)(7)(B)(i). Exclusive of the items exempted by Fed. R. App. P. 32(f), the brief contains 1,146 words.

Pursuant to the 6th Cir. R. 32(a)(7(c), the undersigned certifies this brief complies with the type-volume limitations of 6th Cir. R. 32(a)(7)(B).

1. Exclusive of the exempted portions in 6th Cir. R. 32(a)(7)(B)(iii), the brief contains:

A. 9,969 words.

The brief has been prepared in a proportionally spaced typeface, Liberation Serif in 14-point type, which complies with Fed. R. App. P. 32(a)(5) and (6).

2. The brief has been prepared:

B. in proportionally spaced typeface using: "Times New Roman" in font size 14.

s/ Douglas J. Curlew
DOUGLAS J. CURLEW
Cummings, McClorey, Davis & Acho, PLC
17436 College Parkway
Livonia, MI 48152
(734) 261-2400
dcurlew@cmda-law.com
Attorneys for Defendants-Appellees Midland County, MI and Gladwin County, MI

January 31, 2024

s/Douglas J. Curlew
Cummings, McClorey, Davis & Acho, P.L.C.
17436 College Parkway
Livonia, MI 48152
Ph: (734) 261-2400
Email: dcurlew@cmda-law.com
Attorneys for Defendants-Appellees Midland County, MI and Gladwin County, MI

Dated: January 31, 2023

CERTIFICATE OF SERVICE

I hereby certify that on January 31, 2024, I electronically filed the foregoing document with the Clerk of the Court using the ECF system which will send notification of such filing to the following: All Attorneys of Record; and I hereby certify that I have mailed by United States Postal Service the document to the following non-ECF participants: N/A.

s/Marie E. Jones
Legal Assistant
Cummings, McClorey, Davis & Acho, P.L.C.

CERTIFICATE OF SERVICE
CERTIFICATE OF COMPLIANCE

I certify that on January 31, 2024, I electronically filed the foregoing with the Clerk of the Court using the CM/ECF system, which will send notification of such filing to all attorneys of record.

Pursuant to the 6th Cir. R. 32(a)(7(c), the undersigned certifies this brief complies with the type-volume limitations of 6th Cir. R. 32(a)(7)(B).

1. Exclusive of the exempted portions in 6th Cir. R. 32(a)(7)(B)(iii), the brief contains:

s/ Douglas J. Curlew

DOUGLAS J. CURLEW

A. 9,969 words.

Cummings, McClorey, Davis & Acho, P.L.C.

17436 College Parkway

Livonia, MI 48152

2. The brief has been prepared:

(734) 261-2400

B. in proportionally spaced typeface using: "Times New Roman" in font size 14.

dcurlew@cmda-law.com

Attorneys for Defendants-Appellees Midland County, MI and Gladwin County, MI

s/Douglas J. Curlew
Cummings, McClorey, Davis & Acho, P.L.C.
17436 College Parkway
Livonia, MI 48152
Ph: (734) 261-2400
Email: dcurlew@cmda-law.com
Attorneys for Defendants-Appellees Midland County, MI and Gladwin County, MI

January 31, 2024

Dated: January 31, 2023

CERTIFICATE OF SERVICE

I hereby certify that on January 31, 2024, I electronically filed the foregoing document with the Clerk of the Court using the ECF system which will send notification of such filing to the following: All Attorneys of Record; and I hereby certify that I have mailed by United States Postal Service the document to the following non-ECF participants: N/A.

s/Marie E. Jones
Legal Assistant
Cummings, McClorey, Davis & Acho, P.L.C.